

March 15, 2025

From:

C. Maine

Artist, Author, Small Business Owner

Re: Nation Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

As an artist and an author, I run a small business under threat of theft and loss of business and livelihood from Big Tech companies such as Google, Microsoft, Meta, OpenAI, Stable Diffusion, Midjourney, and other artificial intelligence creators.

As such, I would like to urge the Administration to think beyond the current “arms race” of AI and reject the proposals of these abusive companies built upon the theft, copyright, and privacy violations of thousands of artists, creators, and common people whose information, photographs, art, music, writing, and more was used without consent, knowledge, and compensation.

In creating an AI Action Plan, the Administration should build a better foundation that protects small creators and publishers and maintains copyright protections for all, not just Big Tech and other Big Business. It should also require transparency and disclosure of AI-generated content to all.

My apologies if this letter is less polished and in depth as I would normally craft. I only found out about the RIF for Development of an AI Action Plan mere hours before public comment closing. Despite following AI in the news, this went under my radar as it likely did for many under the information censorship and control of centralized internet entities such as Google and Meta. I believe these companies may have even suppressed the news knowingly as shown in [this Meta search](#).

Copyright and Intellectual Property Must Be Protected And Respected For All

AI Generated Content Should Not Be Capable Of Copyright Or Royalties

The creation of Generative AI models and release to the public has threatened the livelihood of many artists and writers whose very creations were used without knowledge, consent, or reparation to train the very AI models now being used to replace them and others in a mass move to shift skill and wealth to the unskilled and the already wealthy. People without skill or training now have free or subscription access to a machine that grants them the abilities they never learned or possessed and to enter the market to compete for wealth against the people who do possess these abilities. People whose abilities became the data sets of these AI models now being used against them.

Case in point, freelancer websites offering artistic abilities are now flooded with AI “artists” capable of generating content faster and with little to no effort and skill against those who have trained for years for the abilities AI harvested through data scraping and offered to the unskilled.

These generative content creators often undercut true artists and have amassed wealth from skills they do not possess. The current top commissioned artist on Etsy is an AI “artist” that does not clearly label or define that they use AI for their works and have sold hundreds if not thousands of “paintings” to customers in the mere three years that their shop has existed.

Additionally, Amazon is now flooded with AI generated books from a wealth of “authors” who were incapable of writing much of anything before being given access to a machine that will do it for them.

Generative AI is not a tool, it is a cheat created by the theft of thousands of artworks to create a database for a machine to rearrange as best it can to match the “prompt” of the creator. The creator themselves has little more than an idea they have no ability or skill to execute without this machine.

Everything you see in this world was designed by some form of artist. From the bench on the street to the building across the way, to the car you drive, the couch you sit in, the books you read, the art on your walls, the plate you eat food from, the shows on your TV. Just about everything in existence has the influence of some creator. Art is a defining ability of humanity. It is what is remembered when we’re gone and all that remains in history is what we created. Even the cavemen’s first expression and mark in history was the art they left upon cavern walls.

Even in the instructions to submit a comment to the Federal Register, it states that “...no business proprietary information, copyrighted information, or sensitive personally identifiable information be submitted as part of your response to this RFI.” This statement alone means this Administration already understands the value and import of copyright protection, yet Big Tech is urging the Administration to allow them to violate and take away that right it for the common people—the majority of this nation—while Big Tech and Big Business will maintain and guard their own copyrights and proprietary information like watch dogs. See how quickly Stable Diffusion and Midjourney cried theft when their own images and data were thought stolen by the other in [this article](#), meanwhile they desire the ability to call their blatant copyright violation against artists “fair use”. However, Big Tech’s usage of AI does not fall under fair use when their generated content competes against the original creators of the content within the data set. Creating a machine to compete against the people it is training off of is the complete opposite of fair use.

All Content Generated By AI Should Be Transparent In Its Source And Labeled As Such To Prevent The Spread of Scams And Misinformation

Generative AI is already capable of faking videos and voices to a level that an alarming number of people are incapable of identifying as AI. In 2024 some videos of the LA fires went viral for their destruction and apocalyptic visuals. People across social media believed it to be real footage until it was verified as being generated by AI ([article](#)). This is only one example of the spread of misinformation caused by AI, but all you have to do is browse Instagram to find a multitude of mislabeled reels and videos spreading false information backed by AI generated videos.

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Generative AI also allows for scammer to thrive in a new way. A perfect example is a Facebook business depicting a clearly AI generated man with a false personal backstory of how he's been in the leatherworking business for forty years. Customers of this business have reported that their items come from a warehouse in China. Worse than this "business" existing is the fact that when I personally reported the advertisements and page to Meta, they only checked out the business with their machine models which found nothing amiss and claimed the business did not violate any of their community standards when it violated more than a few. There was no way to follow up and provide a case and so the scam business remains active, luring in more unaware customers.

This is far from the only scam out there. Watch any YouTube video and you're bound to see an advertisement for some false get rich quick scam based off some secret AI prompt.

Creating a world filled with false information will only create a sense of disillusionment with reality. If AI gets better and less detectable by the human eye, it will only become more difficult to seek out the truth especially if AI generated content is not transparently labeled and identified.

AI Should Also Always Be Verified And Kept In Check By Humans And Should Not Be Relied Upon Fully As An Infallible Source

AI is notoriously inaccurate and is known to "hallucinate" information that has led to numerous problems to anyone using it as a source of information. This is despite the vast wealth of human knowledge that AI already has access to, stolen or otherwise. AI info and summaries on Google alone are so inaccurate it has been called out in news ([article](#)) and even its own employees have been warned of the security and privacy threat of using their own AI ([article](#)). Big Tech companies also notably stepped back from allowing their AI chat bots to comment on the 2024 US election due to major inaccuracies and misinformation (as seen [here](#).)

Even the simplicity of AI call centers to redirect customers to the people and departments they need to speak to in order to solve a problem have not made it quicker for anyone to get their problem solved and it's only increased the time to get things done that would have been quickly solved with a human understanding.

Education and learning is threatened by AI Chat Bots and their inaccuracies and misinformation. And with Generative AI capable of writing essay and performing research, human inadequacy is beginning to thrive. America's education level is already embarrassingly low and AI in education has not improved the situation. It doesn't help that AI detection models for determining if an essay was written by an AI are also fallible. Many have put through their own articles and research written solely by their own ability and found that the machine flagged them as having been written by AI. It's the same with art. AI is currently fallible even in its detection of itself.

National Security Should Not Be Hinged On A System Incapable Of Fact Checking And Consistently Proven To Manufacture False Information

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Chat GPT has been accused of generating false information on people and on “hallucinating” imaginary cases as seen [here](#). And as stated above, Big Tech companies stepped back from allowing their AI Chat Bots from commenting and answering questions on the 2024 US election because of known inaccuracy and misinformation.

AI Should Not Be Allowed To Train Off Biometric Data As It Creates A Major Security Risk

With the existence of Deep Fake AI technology already in existence, allowing AI to train off the collected biometric data of the populace or on data collected from social media could create a dystopian horror of identity theft. This poses a major security risk not only to individuals, but to the nation as a whole.

It is already possible for AI scammers to train off an individual’s voice and create a false hostage phone call situation to extort money. This is a problem that can become far worse with increased access and allowance to train off biometrics and social media. With enough voice and video samples collected, AI generators may be able to create myriad of security threats by mimicking individuals.

People should have the right to refuse their biometrics from being collected from all sources including airports and social media. Secondary methods of identity verification that don’t rely on biometrics should also exist as they have for years. Hacking of biometric collection data centers are not an ‘if’ question, but ‘when’ and personal information is bound to be caught up in an attack by AI or human actors.

People have already found ways to abuse AI in this short period of time since its public debut in 2022. How much worse will it become with unfettered access to everything including videos and photographs on social media claiming it to be “fair use.”

AI Should Never Receive Resource Priority Over Human Need

AI Needs Environmental And Energy Protections And Regulations In Place So As Not To Further Exacerbate A World In Climate Crisis

There Should Also Be Deeper Research Conducted Into The Effects On Environment And People Near Data Centers

And There Should be Renewable And Non Destructive Sources Of Energy That Do Not Worsen The Climate Crisis

AI data centers consume as mass amount of resources to exist. Already at these early stages of existence, AI consumes as much energy as that of a small nation. It also consumes about 16 ounces of drinkable water for every 20-50 prompts. Google’s AI alone is estimated to have consumed about 550,000 gallons per day in a nation where the average person’s withdrawal of water per day is 132 gallons. ([article](#)).

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Fresh water is a precious and limited resource necessary for human life on this planet. There are already millions of people living in countries with critical water scarcity while AI data centers are being allowed to consume this limited resource in competition with the people.

One of the major changes the current climate crisis has caused on this world is drought and yet while people in California ([article](#)) and other areas are put under restriction for water consumption to preserve this precious resource, AI data centers are still allowed to withdraw mass amounts of this resource despite the high threat level.

Last summer alone, most of the world dealt with record high temperatures and places that rarely see 100 degrees Fahrenheit saw a multitude of days in the triple digits. Certain high heat areas of the globe became uninhabitable by people when before it was simply considered an extreme. There have been unusual weather changes shifting as the climate crisis continues, the most recent event of a hurricane in the mountains of North Carolina being the most note-worthy over here in the US. But there have been mass shifts in climate globally without adding the threat of a machine that consumes the water and energy of an additional nation on this world on the brink of climate collapse.

AI Should Be Kept In Check By People Without A Stake In Its Company And Without Monetary Gain From Its Profits

The corporations at the forefront of the AI race are for-profit companies that have already violated the trust of many and continue to do so. Meta, Google, ChatGPT, and others fill the news with lawsuits and privacy violations galore. I don't think I need to provide examples when a simple search will offer up a multitude.

National Security should not be hinged on corporations that consistently violate it. Google has lawsuits for listening in to phone conversations, for violating incognito mode, and scanning private emails. Microsoft implemented Recall despite backlash and its comparison to being spyware with its collection of personal and sensitive data. Meta recently updated their policies in 2024 to force every user to allow its AI to scrape the data from their posts, photos, videos, etc without allowing a true option to opt out. AI's existence itself is proof of massive copyright violation that has been overlooked and is now trying to be excused without cause.

There is little public trust of the entities creating the AI and in AI itself is low and declining ([article](#)). Allowing AI to remain unregulated or giving it more power will only cause a full loss of trust. AI needs to be kept in check by people without a stake in the company or in AI's growth and creation, people who cannot be bought at the very high cost of trust.

In conclusion, while I don't believe AI is a necessary step to progress and that better regulation on predatory and abusive corporations seeking to centralize resources, information, and global wealth would serve more benefit to the world as a whole, AI is still a problem for now. But if properly regulated and thought out now instead of lighting the match and trying to put out the fires later, the Administration can prevent great future hardship.

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I urge the Administration to think deeply on the future ahead and the problems that will eventually arise if not addressed early. I've listed a multitude in the few hours notice I was given to create this comment and I'm sure I did not get in as much depth or cover as much detail as I could have, but I hope this is enough to gain the Administration attention.

We need to make a better world. It can start with this.